

DEED OF SALE

(Registered)

Document No. 2841 of 2016 | Book 1 | Office of the Sub-Registrar, Kurichi, Coimbatore District, Tamil Nadu

THIS DEED OF SALE is made and executed on this **22nd day of July 2016** (Twenty-second day of July Two Thousand Sixteen).

BETWEEN

M/s. Palani Chettiar Industrial Holdings, a partnership firm having its office at No. 14, Trichy Road, Singanallur, Coimbatore 641005, represented by its managing partner Sri. R. Palani Chettiar, hereinafter called the **VENDOR** (which expression shall, where the context so admits, include its successors and assigns) of the ONE PART;

AND

Southgate Textiles Private Limited, a company incorporated under the Companies Act, 2013, bearing CIN U17291TZ2016PTC027431, having its registered office at Plot 47, SIDCO Industrial Estate, Kurichi, Coimbatore 641021, Tamil Nadu, represented by its Director Smt. Lakshmi Iyer, hereinafter called the **PURCHASER** (which expression shall, where the context so admits, include its successors and assigns) of the OTHER PART.

WHEREAS:

The Vendor is the absolute owner, seized and possessed of and otherwise well and sufficiently entitled to the industrial plot and building more particularly described in the Schedule hereunder written (hereinafter the 'Scheduled Property'), having acquired the same by a registered Sale Deed dated 09 February 2009, Document No. 1176 of 2009, registered at the Office of the Sub-Registrar, Kurichi.

The Vendor has agreed to sell and the Purchaser has agreed to purchase the Scheduled Property free from all encumbrances, charges, liens and attachments for a total sale consideration of Rs. 1,15,00,000 (Rupees One Crore Fifteen Lakh only).

The Purchaser has, prior to the execution of these presents, satisfied itself as to the title of the Vendor to the Scheduled Property.

NOW THIS DEED WITNESSETH AS FOLLOWS:

1. In consideration of the sum of Rs. 1,15,00,000 (Rupees One Crore Fifteen Lakh only) paid by the Purchaser to the Vendor, the receipt whereof the Vendor hereby acknowledges, the Vendor doth hereby grant, convey, sell, transfer and assure unto the Purchaser the Scheduled Property TO HAVE AND TO HOLD the same absolutely and forever.
2. The Vendor hereby covenants with the Purchaser that the Vendor has a clear, absolute and marketable title to the Scheduled Property and that the same is free from all encumbrances, prior sales, gifts, mortgages, attachments, court injunctions, and acquisition proceedings whatsoever as on the date of execution of these presents.
3. The Vendor has this day delivered vacant physical possession of the Scheduled Property to the Purchaser.
4. The Vendor hereby covenants that the Purchaser shall hereafter peacefully and quietly hold, possess and enjoy the Scheduled Property and receive the rents and profits thereof without any interruption, claim or demand from the Vendor or any person claiming under or in trust for the Vendor.
5. All statutory outgoings, taxes, cesses and assessments in respect of the Scheduled Property up to the date of these presents have been duly paid by the Vendor.
6. The Vendor shall, at the request and cost of the Purchaser, execute and do all such acts, deeds and things as may be reasonably required for more perfectly assuring the Scheduled Property unto the Purchaser.

SCHEDULE OF PROPERTY

All that piece and parcel of industrial land bearing **Plot No. 47**, SIDCO Industrial Estate, Kurichi Village, Coimbatore South Taluk, Coimbatore District, Tamil Nadu, admeasuring 1,858 square metres, together with the RCC factory building of built-up area 1,240 square metres constructed thereon, bounded as follows:

North by	Plot No. 46, SIDCO Industrial Estate
South by	Plot No. 48, SIDCO Industrial Estate
East by	SIDCO Internal Road No. 3
West by	Storm-water drain and compound wall

MEMORANDUM OF ENCUMBRANCE

Endorsement recorded against the Scheduled Property subsequent to the registration of this Deed of Sale, as reflected in the Encumbrance Certificate issued by the Office of the Sub-Registrar, Kurichi.

SUBSISTING CHARGE — MORTGAGE BY DEPOSIT OF TITLE DEEDS	
Nature of charge	Mortgage by deposit of title deeds (equitable mortgage)
Created in favour of	MERIDIAN BANK, Coimbatore Branch
Date of creation	14 March 2024
Amount secured	Rs. 1,75,00,000 (Rupees One Crore Seventy-Five Lakh only)
Property charged	Plot No. 47, SIDCO Industrial Estate, Kurichi, Coimbatore 641021
Facilities secured	Credit facilities granted by Meridian Bank to Southgate Textiles Private Limited
Status	Subsisting and not discharged as on the date of this endorsement

The above charge was created by deposit of the original title deeds of the Scheduled Property with Meridian Bank, Coimbatore Branch, on 14 March 2024, as security for the credit facilities availed by Southgate Textiles Private Limited from the said bank, and the same remains subsisting on record. This memorandum is recorded for the information of all persons dealing with the Scheduled Property.

Encumbrance Certificate reference: EC/KUR/2026/03187, period 01 January 2016 to 31 July 2026.

IN WITNESS WHEREOF the Vendor and the Purchaser have hereunto set their respective hands on the day, month and year first above written.

For M/s. Palani Chettiar Industrial Holdings

For Southgate Textiles Private Limited

(VENDOR)

Lakshmi Iyer, Director (PURCHASER)

WITNESSES:

1. S. Ramanathan, No. 5, Bharathi Street, Coimbatore 641002.
2. K. Meenakshi, No. 22, Gandhipuram, Coimbatore 641012.

REGISTRATION ENDORSEMENT

Registered as Document No. 2841 of 2016, Book 1, Volume 218, Pages 44 to 51, in the Office of the Sub-Registrar, Kurichi, Coimbatore District, on 22 July 2016. Stamp duty of Rs. 8,05,000 and registration fee of Rs. 1,15,000 paid.

Title chain verified clear from the registered Sale Deed of 2009 through to the present conveyance of 2016; no prior subsisting encumbrance was recorded at the date of registration. The Meridian Bank charge noted at page 3 was created subsequently, on 14 March 2024.